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INTRODUCTION

International societies are not unchangeable entities rather they depend upon the ebb and flow of political circumstances.¹ Entities change day by day and time by time. Their agendas change, their political belief changes, their government changes etc. Some new entities or insurgents or belligerents come into existence, they seek their recognition against other. New facts and questions arise as to whom to give recognition, what are the basic needs or the rules to get an entity recognized, who can recognize others etc. Each state will have to decide whether or not to recognize the particular eventuality and the kind of legal entity it should be accepted as. Thus, each state conducts its relations with other states on the basis of particular understandings of the legal status of those other states. In many instances, such understandings are uncontroversial and amount to a recognition of the status quo; the UK and its dealings with France, for example.

Sometimes, however, a state can take a position which challenges the existing order². According to Philip Jessup, “recognition means that an existing State acknowledges the political entity of another State, by overt or covert act.” It is important to know what constitutes a State. International law states that, an entity which meets the international legal criteria of statehood is able to be a State. Recognition therefore involves consequences both on the international plane and within municipal law. If an entity is recognized as a state in, for example, the United Kingdom, it will entail the consideration of rights and duties that would not otherwise be relevant. There are privileges permitted to a foreign state before the municipal courts that would not be allowed to other institutions or persons.

It therefore follows that Recognition in International law plays a crucial role in shaping the international community and establishing diplomatic relations

between states. This process

¹See generally e.g. J. Crawford, *The Creation of States in International Law*, 2nd edn, Oxford, 2007; Oppenheim's International Law (ed. R. Y. Jennings and A. D. Watts), 9th edn, London, 1992; H. Lauterpacht, *Recognition in International Law*, Cambridge, 1947.

²All Answers ltd, 'Recognition of States and Governments in International Law' (Lawteacher.net, June 2019) <https://www.lawteacher.net/free-law-essays/international-law/recognition-of-states-and-governments-in-international-law-international-law-essay.php?vref=1> accessed 20 June 2019



involves acknowledging the legitimacy of a new or existing state or government, thereby conferring certain rights and obligations upon them. This presentation explores the principles of recognition in international law, focusing on the recognition of states, the different types of recognition, and the distinction between recognizing states and governments.



THE CONCEPT AND MEANING OF STATE RECOGNITION IN INTERNATIONAL LAW

According to International law, Recognition is the formal acknowledgment of the status of an independent State by other existing States. For an entity to be called a state and to enjoy rights and duties and obligations under international law, it is necessary that the existing state have given awareness of its capability of being a state. Such awareness by existing states is called recognition. Recognition may also be defined as a legal and political action whereby the recognizing state acknowledges the existence of certain facts and accepts the consequences thereof. Thus the recognition of a state or a government implies readiness to treat the entity as a state and government as government for all purposes. It is only through recognition that a state comes into being under international law. A new state is born out from an existing State or an old State which disappeared and comes with a new name or by splitting an existing State into two States. If a new state enjoys certain rights, privileges and obligations then it must get recognition as a state, which is very essential. However, there are some minimum criteria required before a State is considered to be a State. A State must get the De Jure (when a state is legally recognized) recognition for considering a State as a sovereign State.

Recognition is separate from diplomatic relations, the former does not necessarily compel the latter. Not having diplomatic relations does not imply non- recognition. Recognition also comes into play in the acquisition of new territory, especially by the use of force and on the issue of insurgency or belligerency, the last has not arisen since the Second World War.

The subject is complicated by inconsistent state practices, for decisions are based as much on objectives as on subjective criteria. Objectively, a state that has a defined territory, a population and a government effectively in control, should be recognized just as a government in effective control of its population should be recognized. Recognition or non-recognition has been based on political, economic or humanitarian grounds or even military strategy. In such situations, legal principles may be used to camouflage ulterior motives. This the Arab state, with the exception of Egypt, refused to recognize Israel as a state though they all belong to the UN. The US refused to recognize the government of People's Republic of China which came into being in 1948 and only did so in 1979. Examples of state recognition include Bangladesh, which declared independence from Pakistan in 1971 and was eventually recognized by the international community, and Kosovo, which unilaterally declared independence from Serbia in 2008 but remains only partially recognized by UN member states.

ESSENTIALS FOR RECOGNITION OF STATES IN INTERNATIONAL LAW

State is the primary subject in International Law. The requirements to be considered as a subject of international law are the capacity to have rights and duties under international law. Some writers also argue that a State must be fully Independent and be recognized as a State by other States. The international legal System is a horizontal system dominated by States which are, in principle, considered sovereign and equal. International law is predominately made and implemented by states. Only States can have sovereignty over territory. Only States can become Members of the United Nations and other international organizations. Only States have access to the International Court of Justice.

The process of creating new states is a mixture of fact and law, involving the establishment of particular factual conditions and compliance with relevant rules. Under the International Law, **Article 1 of the Montevideo Convention of 1933** defines the state as a person and lays down the following essentials that an entity should possess in order to acquire recognition as a state:



- (i) Permanent population
- (ii) Defined territory
- (iii) Government
- (iv) Capacity to enter into relations with other States

PERMANENT POPULATION: A permanent population is another necessary requirement for statehood. There are no criteria relating to the size of the population: Andorra with its 68,000 inhabitants is as much a State as India, which now has currently well over one billion Inhabitants. Neither does international law set any requirements about the nature of the Population: the population may largely consist of nomads (such as in Somalia), it may be ethnically (relatively) homogeneous (such as in Iceland) or very diverse (such as in the former Soviet Union), it may be very poor (such as in Sierra Leone, where in 2000 nearly 70 percent of the population lived below the poverty line) or it may be very rich (as in many Western States). It should also be noted that the requirement of a permanent population does not relate to the nationality of a population: it merely requires that States have a permanent population. According to Brownlie it connotes a stable community with a physical basis.

DEFINED TERRITORY: The development of the State is closely linked to the ability to Exercise effective control over a defined territory. However, the existence of border disputes Is not an obstacle to attaining statehood in international law. There is no rule stating that the Boundaries of a State should be undisputed or unambiguously established. Israel for example, was admitted to the United Nations on 11 May 1949, despite its ongoing territorial disputes With the Arab States. According to O'Keefe there is no limit to size. Undefined boundaries will not matter as long as the core territory is defined. With regard to the size of the territory. It can be stated that no

specific requirements exist: the international community of States consists of both micro-States, such as Liechtenstein and San Marino and very large States Such as Canada or Russia.



GOVERNMENT: The third requirement for statehood, is the existence of a government capable of exercising independent and effective authority over the population and the territory. The importance that is attached to the criteria of independence and effectiveness is understandable considering the predominantly decentralized nature of international law. Since international law lacks a central executive body, with the power to enforce compliance with international obligations, compliance with international obligations must often be guaranteed by the States themselves. A State must therefore be able to effectively and independently exercise its authority within its borders. According to Brownlie the existence of effective government, with centralized administrative and legislative organs, is the best evidence of a stable political community.

CAPACITY TO ENTER INTO RELATIONS WITH THE OTHER STATES

It can be said that the capacity to enter into full range of international relations can be a valuable measure, but capacity or competence in this sense depends in part on the power of the government, without which a State cannot carry out its international obligations. The ability of the Government to independently carry out its obligations and accept responsibility for them in turn greatly depends on the previously discussed requirements of effective government and Independence. Moreover, a State cannot enter into relations with other States if it is not recognized. Consequently, it cannot be recognized as a State. According to Shaw the concern is the lack of competence to enter into legal relations, and the essence of such a capacity is Independence.

THEORIES OF RECOGNITION OF STATES IN INTERNATIONAL LAW

There are two theories of recognition of states in international law, to wit;

1. Constitutive theory
2. Declaratory theory



CONSTITUTIVE THEORY

This theory was espoused by **Oppenheim** and he holds that "a state is and becomes an international person through recognition only and exclusively".

The implication of this is that a state is nonexistent until recognized by other states in the international community. It is on record that the doctrine of constitutive theory was mostly put to use in the 19th century where new states were only given recognition by a consensus by the other member states. Also, the western powers used constitutive theory in 1973 when they formally recognized East Germany. Membership of international law is often taken to imply evidence of statehood. Article 4(2) of the UN charter provides thus, "the admission of any such state to membership in the UN will be effected by a decision of the General Assembly upon the recommendation of the security council."

As an addendum, a state may have a duty to refrain from expressly recognizing another state in cases of states arising from illegitimate military actions, violations of human rights or other clear infringement on international norms. An example is when the UN nullified the annexation of Kuwait by Iraq during the period preceding the Gulf war of 1991. This applies also in cases of breakaway states.

CRITICISMS OF CONSTITUTIVE THEORY

This theory has been criticised by several jurists. Few of the criticisms of this theory are:

- Recognition is political and diplomatic but not legal. This theory imposes an obligation on all member states to recognize a State. Practically, no state wants to do something on obligation.

- There is no law that obliges established states to recognize new States.

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- Recognition of a State can be done by few States and others might refuse. According to this theory, the recognition should be done by all the States.
- Palestine is recognized as country by 80 nations though it does not have a definite territory, population and a definite Government.
- Israel is formed in 1947 by the United Nations Organizations. Within few hours, many countries too recognized it. However, India recognized it in 1992.
- The disadvantage of this approach is that an unrecognized 'State' may not be subject to the obligations imposed by international law and may accordingly be free from such restraints as, for instance, the prohibition on aggression.
- This theory also leads to confusion when a new state is acknowledged and recognized by some of the existing states and not recognized by other states.
- The theory fails to explain Legal rights and consequent of a recognized state.

Example: Taiwan is a democratic country and is adjoining areas with Chinese territory. Only few countries recognize Taiwan yet it had business dealings with almost every country.

DECLARATORY THEORY OR EVIDENTIARY THEORY

The second theory, the declaratory theory, adopts the opposite approach and is a little more in accord with practical realities.³ The main exponents of the Declaratory Theory of Statehood are **Wignner, Hall, Fisher and Brierly**. According to this theory, any new state is independent of the consent by existing states. This theory has been laid down under **Article 3 of the Montevideo Conference of 1933**. This theory states that the existence of a new state does not depend on being recognized by the existing state. It also maintains that recognition is merely an acceptance

³ See e.g. J. L. Brierly, *The Law of Nations*, 6th edn, Oxford, 1963, p. 138; Brownlie's *Principles of Public International Law* (ed. J. Crawford), 8th edn, Oxford, 2012, p. 144; D. P. O'Connell, *International Law*, 2nd edn, London, 1970, vol. I, pp. 128 昀昀.; S. Talmon, 'The Constitutive Versus the Declaratory Theory of Recognition: *Tertium Non Datur?*', 75 BYIL, 2004, p. 101; and Crawford, *Creation of States*, pp. 22 昀昀. See also the *Tinoco* arbitration, 1 RIAA, p. 369; 2 AD, p. 34; and *Wulfsohn v. Russian Republic* 138 NE 24; 2 AD, p. 39



by states of an already existing situation. A new state will acquire capacity in international law not by virtue of the consent of others but by virtue of a particular factual situation. It will be legally constituted by its own efforts and circumstances and will not have to await the procedure of recognition by other states. This doctrine owes a lot to traditional positivist thought on the supremacy of the state and the concomitant weakness or non-existence of any central guidance in the international community. This theory states that declaration is a mere formality and has no legal effect as the existence of a State is a mere question of fact.

Every new state becomes a member of the family of nations ipso facto by its coming into existence. Recognition only provides the evidence to this fact. This theory says recognition is not important.

CRITICISM OF THE DECLARATORY THEORY

The declaratory theory of statehood has also been criticised. This theory has been criticised on the ground that this theory alone cannot be applicable for recognition of a state. When a state having essential characteristics comes into existence as a state, it can exercise **international rights and obligations** and here comes the application of declaratory theory, but when other states acknowledge its existence and the state gets the legal rights of recognition, the consecutive theory comes into play.

MODES OF RECOGNITION OF STATES IN INTERNATIONAL LAW

The modes of international organizations are the basis to which states have their legitimacy in the international sphere. The following below are the modes of state recognition in international law;

1) De Facto Recognition and;

2) De Jure Recognition



DE FACTO RECOGNITION⁴

De facto recognition is when a state is recognized by other states based on its factual existence, regardless of whether it meets all the criteria for statehood under international law. In other words, a state may be recognized as a de facto state even if it doesn't fully meet all the legal requirements for statehood. A typical example of a state that has de facto recognition is **Kosovo**. Kosovo declared independence from Serbia in 2008, but it has not been recognized by all countries. This means that Kosovo is considered a de facto state, even though it doesn't have de jure recognition from every country. In both cases, de facto recognition has been important for these states, as it has allowed them to participate in international affairs and access resources that would not be available to them without recognition. De facto recognition can be a stepping stone to de jure recognition, as it can help a state build support and legitimacy among other countries. Another example of a state that has de facto recognition but not de jure recognition is Taiwan. While Taiwan is not officially recognized as a state by the United Nations or most other states, it has de facto recognition from many countries and is considered a de facto state. It therefore follows that recognition here is only by fact and not legal and mere de facto recognition is not sufficient to get UN membership. To take one instance, the United Kingdom recognised the Soviet government de facto in 1921 and de jure in 1924. Similarly, the government of the Italian conquering forces in Ethiopia was recognised de facto by the UK in 1936, and de jure two years later.⁵

DE JURE RECOGNITION

This is a permanent recognition which once granted cannot be taken back or withdrawn by other States. It is legal and rightful. A state will have only one Government. Exchange of diplomatic representatives takes place. State succession

happens smoothly. De jure recognition by majority states is essential for UN membership. De jure recognition is often considered more "official"

than de facto recognition, since it is based on a state's legal status. However, it's important to

⁴ See e.g. Oppenheim's International Law, p. 154

⁵ See below, pp. 351 and 352. 67 See below, p. 349.



note that both types of recognition are equally valid under international law. There are many examples of states that have de jure recognition, including all of the UN member states. However, one notable example is South Sudan. South Sudan gained independence from Sudan in 2011 and was recognized by the United Nations and most other countries. This recognition was based on South Sudan's legal status as a state and its compliance with all the legal criteria for statehood. De jure recognition can provide states with a number of benefits, such as access to resources and participation in international organizations. It can also help to ensure that states are treated fairly and equally under international law. A related case in the De Jure recognition is that of **Luther vs. Sagor (1921) 1 KB 456**.

DISTINCTION BETWEEN DE FACTO AND DE JURE FORMS OF RECOGNITION

The following are the key differences between *de facto* and *de jure* recognition;

- Generally, *de facto* recognition and *de jure* recognition are distinguished by the factuality of the former, and the legality of the latter. This means that while *de facto* recognition is based on fact, *de jure* recognition is based on law.
- De Facto recognition is granted to a State when it fulfils the essential conditions of State whereas, De Jure recognition is granted to a State when all the essentials are fulfilled along with the permanent control of that essentials.
- De Facto recognition is the primary step to grant De Facto recognition. On the other hand, De Jure recognition can directly be granted without De Facto recognition.
- De Facto recognition can easily be revoked while De Jure recognition can never be revoked. For instance the **1979 recognition of the People's Republic of China** as the sole legal government of China entailed the

withdrawal of recognition of the Republic of China (Taiwan) which was also interpreted by a US court in the case of **Goldwater v. Carter**⁶ to mean that in so far as the formal foreign relations of the U.S is concerned, a government does not exist in Taiwan any longer.

⁶ 444 US 996 (1979)



- The States having De Facto recognition cannot enjoy diplomatic immunities. Conversely, the States having De Jure recognition can enjoy diplomatic immunities.
- The States having De Facto recognition have only few rights and obligations against other States. On the other hand, De Jure recognition have absolute rights and obligations against other States.

FORMS OF RECOGNITION OF STATES IN INTERNATIONAL LAW

The following are the various forms of recognition;

1. **EXPRESS RECOGNITION:** This has to do with a clear and formal expression of recognition by a state, often through diplomatic statements, official communications, or the exchange of ambassadors. This type of recognition leaves no ambiguity regarding the recognizing state's position on the legitimacy of the new state or government. For instance, when South Sudan gained independence in 2011, many countries explicitly recognized its statehood through official statements or resolutions.
2. **IMPLIED RECOGNITION:** This is an indirect mode of recognition. Here, recognition is inferred from the conduct of a state or States. Thus there is no contract, agreement or treaty to this fact even though recognition is conferred by the recognised state by entering into a consequential relationship. An instance include attending conferences, conventions and meetings. Furthermore, where a States votes in favour of the membership of an entity in question into the United Nations, it is a natural inference that recognition has occurred. An instance includes when

UK regarded its vote in favour of UN membership for the former Yugoslav Republic of Macedonia as amounting to recognition of that entity as a state.

3. **CONDITIONAL RECOGNITION:** Conditional recognition is often said to occur when states are recognised subject to the fulfillment of certain conditions. For



instance the Berlin Congress of 1878 recognised the state of Bulgaria, Romania, Serbia and Montenegro on the condition that they did not impose religious barriers on any of their subjects. Another instance of this approach can be seen with the Litvinov Agreement of 1983 whereby USA agreed to recognize the Soviet government upon the latter's undertaking to avoid acts prejudicial to the internal security of USA and to come-of settlement of various financial claims.⁷ An example of conditional recognition is the European Union's (EU) recognition of the Federal Republic of Yugoslavia (later Serbia and Montenegro) in 2000, which was linked to the country's commitment to cooperate with the International Criminal Tribunal for the former Yugoslavia and implement democratic reforms.

4. **UNCONDITIONAL RECOGNITION:** This is granted without any specific requirements or conditions. It is based on the recognizing state's belief that the new state or government meets the criteria for statehood or legitimacy. For instance, many countries recognized the independence of the Baltic States (Estonia, Latvia, and Lithuania) from the Soviet Union in 1991 without imposing any conditions.
5. **COLLECTIVE RECOGNITION:** Collective recognition is when a state is recognized by a group of States. This would amount to recognition by means of an international decision whether by an international organization or not. This is usually done by multilateral treaties and conventions etc. An instance can be seen usually with recognition of membership of the United Nation Organization by the member states. However, states are still free not to recognize any other member state of the United Nations jointly with others.

6. **PREMATURE RECOGNITION:** This is a kind of recognition granted by a third party or government to an insurgent or cessationist community before it has achieved a measure of permanence.⁸ An instance includes when premature recognition of

⁷ United States v. Pink 315 US23

⁸ Oxford Reference (2023) Recognition, Premature.Oxford University Press.
<https://www.oxfordreference.com/display/10.1093/oi/authority.20110803100408161>



Bosnia-Herzegovina which had declared its independence from Yugoslavia in May 1992.

RECOGNITION OF GOVERNMENT

Government is an essential of statehood. By government it is meant the administrative and controlling tool of a state. Recognizing a government entails accepting its authority to represent the state in international relations. Recognition of a State is entirely different from the recognition of a government. Recognition of a government means that the recognizing State regards it as the sole representative of the given State in international intercourse. State recognition implies acceptance of its territorial boundaries and sovereignty, while government recognition means accepting its authority to represent the state in international relations. When a state recognises a government, it acknowledges a group of persons as competent to represent the state in international law. When the regime of a State is changed, it is required to be recognized by other States. Change in the government of a State may take place in two ways ;

- Normal course (constitutional way)
- Coup d' état' (revolt or revolution)

Once a state comes into being, its government may change from time to time. If the change of government takes place in ordinary political life it the existing states are not required to recognize the new government.

A typical example is the **Iran's case of 1979** where after the Islamic Revolution, the government of Iran changed from a monarchy to an Islamic republic. Many states recognized the new government, accepting its authority to represent Iran in international affairs. Another instance is in the **Venezuela case of 2019** where the

political crisis in Venezuela led to competing claims of leadership between President Nicolás Maduro and opposition leader Juan Guaidó. Some countries, including the United States and several European and Latin



American nations, recognized Guaidó as the interim president, while others, such as Russia and China, continued to support Maduro's government.

CRITERIA FOR THE RECOGNITION OF GOVERNMENT

- The criterion in international law for the recognition of an authority as the government of a State is its exercise of effective control over the State's territory.
- A government In a state usually receives recognition only when the other States are satisfied that it commands the support of the majority of the people and may become stable.
- Willingness and capacity to carry out its international obligations is also considered relevant.

DOCTRINES FOR STATE RECOGNITION OF GOVERNMENT

A. TOBAR DOCTRINE: (No Recognition for Unconstitutional Governments) 1907 - Named after Carlos Tobar, Foreign Relations Minister of Ecuador, the doctrine states that; recognition of government should only be granted if its administration came to power by legitimate democratic means. It was primarily adopted by Central American States in 1907. Later recognition of the US to this doctrine turned it to be known as **Wilsonian Policy**. The US applied it in Tinoco government of Costa Rica. The doctrine never worked outside Americas.

B. ESTRADA DOCTRINE: (Recognize Existence of Government not Legitimacy) 1930 - Named after Mexican Secretary of Foreign Affairs, Genaro Estrada, the doctrine states that; Recognition of government should be based on its de facto existence rather than on its legitimacy. This policy based on the

principles of non-intervention and self- determination of all nations does not allow the states to assess the legitimacy of governments of other each other's.

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C. BETANCOURT DOCTRINE: This doctrine expresses its disagreement on a state's recognition by military means.

RECOGNITION OF BELLIGERENCY AND INSURGENCY

When a state goes in a state of belligerency where the rebels have a considerable control over a substantial territory of nation, the rebels may be recognized by the existing state. Such recognition is said to be recognition of belligerency. However, certain conditions needs to be attached for a conflict to happen so that it attain the status of beeligerency.

The Conditions for Recognition of belligerency are as follows:

- There should exist within the state a status of armed conflict.
- The insurgents must administer and occupy a major portion of national territory.
- The hostilities must be conducted in accordance with the rules of war and through organized armed forces acting under a responsible authority.
- There must exist certain circumstances which make it necessary for outside states to define their attitude by means of recognition of belligerency
- That the movement shall be of a general character.
- That rebels shall have in possession a substantial part of the national territory.
- That they are giving respect and bind themselves for the warfare laws and other

international duties.

- That they have a proper force.

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If the above conditions have been fulfilled by rebels then they may be recognized by other existing states, and shall enjoy the international rights.

The recognition by existing states of the de facto authority over a large territory of the rebels is said to be insurgency. In case of insurgency, the rebels or the insurgents occupy a large part of the national territory which was formerly governed by the parent government. And if they are capable to control over that occupied part then the existing states may recognize it. Prior to recognize the insurgency it is necessary for the recognizing state to satisfy the following conditions:

- Firstly, when insurgents occupies a considerable parent state's territory,
- Secondly, they have a support from the majority of the citizens of the parent state,
- Thirdly, they are acting under a proper command and,
- Fourthly, they have good control over the occupied territory.

When the in case of an insurgency the above requirements have been complied with then it is on the discretion of the existing state whether to recognize or not. International law has been transformed from a European-based system enabling sovereign states to interact in a relatively limited number of areas to a truly international order with profound and increasingly cooperative requirements. Globalization has ensured that the doctrine of the sovereignty of states has in practice been modified, as the proliferation of regional and global international organizations demonstrates. With the growing interaction of states amongst each other, it only makes sense that

the recognition of new upcoming states turn beneficial to a few.

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WITHDRAWAL OF RECOGNITION

Recognition once given may in certain circumstances be withdrawn. This is more easily achieved with respect to de facto recognition, as that is by its nature a cautious and temporary assessment of a particular situation.

Where a de facto government loses the effective control it once exercised, the reason for recognition disappears and it may be revoked. It is in general a preliminary acceptance of political realities and may be withdrawn in accordance with a change in political factors.⁹ De jure recognition, on the other hand, is intended to be more of a definitive step and is more difficult to withdraw. Of course, where a government recognised de jure has been overthrown a new situation arises and the question of a new government will have to be faced, but in such instances withdrawal of recognition of the previous administration is assumed and does not have to be expressly stated, providing always that the former government is not still in existence and carrying on the fight in some way. Withdrawal of recognition of one government without recognizing a successor is a possibility and indeed was the approach adopted by the UK and France, for example, with regard to Cambodia in 1979.¹⁰

THE STIMSON DOCTRINE (NON-RECOGNITION)¹¹

Although states are not obliged to recognize new claimants to statehood, circumstances sometimes arise that make it a positive duty not to recognize a state. During the 1930s, U.S. Secretary of State, Henry Stimson propounded the doctrine of the nonrecognition of situations created as a result of aggression, an approach that has been reinforced since the end of World

⁹Withdrawal of de facto recognition does not always entail withdrawal of de jure recognition: see, with regard to Latvia, *Re Feivel Pikelnys Estate*, 32 BYIL, 1955–6, p. 288.

¹⁰See 975 HC Deb., col. 723, 6 December 1979, and C. Warbrick, 'Kampuchea: Representation and Recognition', 30 ICLQ, 1981, p. 234. See also AFDI, 1980, p. 888.

¹¹See e.g. Lauterpacht, Recognition, pp. 416–20, and Oppenheim's International Law, pp. 183 啊啊. See also R. Langer, Seizure of Territory, Princeton, 1947; Hackworth, Digest, vol. I, p. 334; I. Brownlie, International Law and the Use of Force by States, Oxford, 1963, chapter 25; Dugard, Recognition, pp. 24 啊啊. and 81 啊啊.; and Crawford, Creation of States, pp. 120 啊啊. See also S. Talmon La Non Reconnaissance Collective des États Illégaux, Paris, 2007, and M. M. H. Dahir, Legal Implications on Non-Recognition of Somaliland: Possibilities and Barriers to Foreign Investment in Unrecognised De Facto State, Lambert, 2015.



War II. In the 1960s, the UN Security Council “called upon” all states not to recognize the Rhodesian white-minority regime’s declaration of independence and imposed economic sanctions. It is a doctrine that has also been reinforced by the principle that legal rights cannot derive from an illegal situation (*ex injuria jus non oritur*).¹² This approach was particularly stimulated by the Japanese invasion of Manchuria in 1931. The US Secretary of State declared in 1932 that the illegal invasion would not be recognised as it was contrary to the 1928 Pact of Paris (the Kellogg–Briand Pact) which had outlawed war as an instrument of national policy. The doctrine of not recognising any situation, treaty or agreement brought about by non-legal means was named the Stimson doctrine after the American Secretary of State who put it forward. It was reinforced not long afterwards by a resolution of the Assembly of the League of Nations stressing that League members should not recognise any situation, treaty or agreement brought about by means contrary to the League’s Covenant or the Pact of Paris.¹³

However, state practice until the Second World War was not encouraging. The Italian conquest of the Empire of Ethiopia was recognized and the German takeover of Czechoslovakia accepted. The Soviet Union made a series of territorial acquisitions in 1940, ranging from areas of Finland to the Baltic States (of Lithuania, Estonia and Latvia) and Bessarabia. These were recognized de facto over the years by Western powers (though not by the United States).¹⁴ The doctrine was examined anew after 1945. **Article 2(4) of the UN Charter** prohibits the threat or use of force inter alia against the territorial integrity of states, while the draft Declaration on the Rights and Duties of States, 1949, emphasized that territorial acquisitions by states were not to be recognized by other states where achieved by means of the threat or use of force or in any other manner inconsistent with international law and order. The Declaration on

Principles of International Law, 1970, also included a provision to the effect that no territorial acquisition

¹²See e.g. Oppenheim's International Law, pp. 183–4, and the Namibia case, ICJ Reports, 1971, pp. 16, 46–7; 49 ILR, pp. 2, 36–7

¹³LNOJ, Sp. Supp. no. 101, p. 8. This principle was reiterated in a number of declarations subsequently: see e.g. 34 AJIL, 1940, Supp., p. 197. See also O'Connell, International Law, pp. 143–6

¹⁴O'Connell, International Law, pp. 143–6.



resulting from the threat or use of force shall be recognized as legal,¹⁵ and Security Council resolution 242 (1967) on the solution to the Middle East conflict emphasized ‘the inadmissibility of the acquisition of territory by war’.¹⁶ Rhodesia unilaterally proclaimed its independence in November 1965 and in the years of its existence did not receive official recognition from any state at all, although it did maintain diplomatic relations with South Africa and Portugal prior to the revolution of 1974. The day following the Rhodesian declaration of independence, the Security Council passed a resolution calling upon all states not to accord it recognition and to refrain from assisting it.¹⁷ The Council imposed selective mandatory economic sanctions on Rhodesia and these were later made comprehensive.¹⁸ Similar action was also taken with regard to the Bantustans, territories of South Africa declared by that state to be independent.¹⁹

LEGAL EFFECTS AND CONSEQUENCES OF RECOGNITION OF STATES IN INTERNATIONAL LAW

Recognition is the process whereby certain facts are accepted and endowed with certain legal status such as statehood. Recognition has various implications for the recognized entity, including its ability to enter into treaties, participate in international organizations, and access international courts.

¹⁵See also article 11 of the Montevideo Convention on the Rights and Duties of States, 1933; article 17 of the Bogotá Charter of the OAS, 1948; and article 52 of the Vienna Convention on the Law of Treaties, 1969. Note also article 5(3) of the Consensus Definition of Aggression, 1974, adopted by the General Assembly in resolution 3314 (XXIX).

¹⁶See also Security Council resolutions 476 (1980) and 478 (1980) declaring purported changes in the status of Jerusalem by Israel to be null and void, and resolution 491

(1981) stating that Israel's extension of its laws, jurisdiction and administration to the Golan Heights was without international legal effect.

¹⁷Security Council resolution 216 (1965). See also Security Council resolutions 217 (1965), 277 (1970) and 288 (1970).

¹⁸See e.g. Security Council resolutions 221 (1961), 232 (1966) and 253 (1968). See also M. N. Shaw, *Title to Territory in Africa*, Oxford, 1986, p. 160; R. Zacklin, *The United Nations and Rhodesia*, Oxford, 1974; and J. Nkala, *The United Nations, International Law and the Rhodesian Crisis*, Oxford, 1985

¹⁹See e.g. General Assembly resolution 31/6A and the Security Council statements of 21 September 1979 and 15 December 1981; Shaw, *Title to Territory*, p. 149. See also J. Dugard, *International Law, A South African Perspective*, Kenwyn, 1994, chapter 5.



State recognition has significant consequences in international law, as it establishes the recognized entity's status as a subject of international law and grants it certain rights and obligations. Some of the consequences include:

1. **Treaty-making capacity:** Recognized states gain the ability to enter into treaties and international agreements with other states, thus participating in the global legal framework.
2. **Enforcement of Responsibility:** The rights accorded to states under international law imply responsibilities. States are liable for the breaches of their obligation. A state is responsible for the direct violation of international law. e.g, The Breach of a treaty or the violation of another state territory. A state is also held liable for the breaches committed by institutions. The state is internationally responsible for the private activities of persons to the extent that private activities of persons to the extent that they are subsequently adopted by the state.
3. **Diplomatic relations:** Upon recognition, states can establish formal diplomatic relations with other countries, exchange ambassadors, and enjoy diplomatic privileges and immunities.
4. **Recognition give legal jurisdiction to member state:** Jurisdiction refers to the power of the state to attack persons, property and circumstance within its territory, and circumstances within its territory. State have exclusive authority to deal with criminal issue arising within their territories. State recognition permits official from one state to act within another state in certain circumstances. The nationality principle permits a country to exercise criminal jurisdiction over any of its nationals accused of criminal offences in another state.

5. **Membership in International Organizations:** Recognized states can become members of international organizations such as the United Nations, World Bank, and



World Trade Organization, providing them with a platform for multilateral cooperation and decision making.

6. **International Recognition of State has paved way for International Cooperation:** States have opted to cooperate in a number of areas beyond merely the allocation and regulation of sovereign rights. Example, High Seas and Seabed.
7. **Access to International Courts:** Recognition allows states to access international judicial and arbitral bodies, such as the International Court of Justice and the International Criminal Court, to settle disputes and seek legal remedies.
8. When a state is recognized, its past actions and approvals are also recognized (if it is relevant and came into action after recognition starts).
9. **Recognition of State leads to protection of the Environment:** Because the rules of state responsibility require attributions of wrongful acts to particular states, something that is difficult to prove conclusively in cases of harm to the environment. It was recognized that protecting the environment would have to be accomplished by means other than individual state responsibility. Instead, an international cooperative approach has been adopted.

Jurist opinions on the consequences of state recognition include the views of **Hersch Lauterpacht**, who emphasized the importance of recognition in establishing an entity's status in international law. In the case of **Kosovo**, the **International Court of Justice's advisory opinion in 2010** declared that Kosovo's declaration of independence did not violate international law, despite its partial recognition by UN member states. This opinion highlighted the significance of recognition in

determining the legal status and consequences for a new state.

Over all, the consequences of state recognition are vital to integrating new states into the international legal system and allowing them to participate in global governance and diplomacy.



CONCLUSION

Understanding the principle of state recognition in international law, the different types of recognition, the criteria for Statehood and the distinction between recognizing states and governments is vital for policymakers, practitioners, and students of international relations. By acknowledging the legitimacy of a new state or government, existing states shape the international community and influence the rights and obligations of the recognized entities. The recognition of states and governments has significant implications for international relations, including the ability to enter into treaties, participate in international organizations, and access international courts. Various types of recognition, such as de facto and de jure recognition, offer different degrees of formality and legal implications, reflecting the complexities of international law and diplomacy.

Thus, recognition of the State is an essential procedure, so that the State can enjoy the rights and privileges as an independent community under International law. The recognition be it De Facto and De Jure, both provides rights, privileges and obligations. When a state gets De Facto recognition, its right, privileges and obligations are less but when De Jure is recognised by the State it gets absolute rights, liabilities and privileges

In the practical pace of today's society, the existence of a state as such is not dependent on whether it has been recognized. The prime factor in present scenario in the determination of states is whether or not the elements of statehood such as population, defined territory, and powerful government under international law are actually present in the specific case. By considering these factors, states can make informed decisions on recognizing new states and governments, contributing to the stability and development of the international community.